

## M/s Kothiwal Dental College and Research Centre v. State of U.P. & Others

High Court of Judicature at Allahabad · Division Bench · 22 March 2023 · Writ-C No. 34030 of 2022 (connected with Writ-C No. 34036 of 2022) · **Both writ petitions disposed of. The petitioners are relegated to the Electricity Consumer Grievance Redressal Forum, Moradabad under Clause 7.10 of the U.P. Electricity Supply Code, 2005, with liberty to file a complaint (with a certified copy of the order) within four weeks, to be decided expeditiously and strictly in accordance with law after affording reasonable opportunity of hearing; liberty to move a stay application before the Forum, to be decided within two weeks of filing; and no coercive action pursuant to the impugned order dated 7.10.2022 for six weeks or until the stay application is decided, whichever is earlier.**

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### HEADNOTE

Where a consumer challenges a distribution licensee's order by writ but an efficacious statutory remedy of complaint before the Consumer Grievance Redressal Forum (CGRF) under Clause 7.10 of the U.P. Electricity Supply Code, 2005 is available, the consumer will be relegated to that Forum. The petitioners (a dental college and, in the connected petition, a technical institute) sought to quash an order dated 7.10.2022 of the Executive Engineer, PVVNL, Moradabad, and resisted the alternate-remedy objection on the ground that the CGRF was not manned by any judicial member, all judicial members having been removed, so that it was run by an Executive Engineer of a rank equal to the author of the impugned order. On the Court's direction the Executive Engineer filed a personal affidavit establishing that the Moradabad CGRF was functional and chaired by Sri Jagdish, a retired Additional District Judge; the petitioner's contrary website printout showing vacancies did not displace that sworn stand, and the vacancy of the Member (Technical) did not preclude relegation. In view of the respondents' affidavit, the Division Bench disposed of both petitions, relegating the petitioners to the CGRF with liberty to file a complaint within four weeks along with a certified copy of the order (to be decided expeditiously, in accordance with law, after hearing), liberty to seek stay (to be decided within two weeks), and protection from coercive action for six weeks or until the stay application is decided, whichever is earlier. The merits of the impugned order were left to the Forum and were not examined.

### FACTUAL SUMMARY

The petitioner, M/s Kothiwal Dental College and Research Centre (acting through its Manager Salil Kothiwal), and, in the connected petition, M/s Kothiwal Institute of Technology, filed writ petitions on 10.11.2022 praying to quash an order dated 07.10.2022 passed by respondent no.3, the Executive Engineer, Electricity Distribution Division-II, Paschimanchal Vidyut Vitran Nigam Ltd. (PVVNL), Moradabad. The petitioners did not first approach the Consumer Grievance Redressal Forum (CGRF) under Clause 7.10 of the U.P. Electricity Supply Code, 2005, contending that the Forum was not manned by any judicial officer, that all judicial members had been removed and it was being run by an Executive Engineer as Chairman, and that an officer of a rank equal to the author of the impugned order could not be expected to set it aside. By order dated 23.12.2022 the Court directed the Electricity department to look into the matter and submit a further report, and recorded the department's statement that no disconnection of electric supply would be effected till the next date; interim protection was thereafter continued through repeated adjournments between December 2022 and March 2023. The department's counsel stated on instructions that the Moradabad CGRF was functional, with Sri Jagdeesh (a retired Additional District Judge) as Chairman and Sri Yogendra Singh (an attached Executive Engineer) as Member (Licensee); the petitioner produced a website printout of PVVNL (Meerut Discom) showing the posts of Chairman/Judicial Member and Technical Member as vacant. By order dated 14.3.2023 the Court directed the petitioner to file a supplementary affidavit and respondent no.3 to file a personal affidavit on the status of the Forum. Respondent no.3 filed a personal affidavit dated 19.3.2023 annexing a chart dated 15.06.2022 (Annexure-1) and recent orders of the Forum (Annexure-2), deposing that the Forum was functional and chaired by Sri Jagdish, a retired Additional District Judge, though the post of Member (Technical) was vacant. The petitions were heard and decided by a common order dated 22.3.2023.

### REUSABLE CONSTRUCTIONS

1. Availability of a functional and duly constituted Consumer Grievance Redressal Forum under Clause 7.10 of the U.P. Electricity Supply Code, 2005 is an efficacious alternate remedy, and a consumer challenging a licensee's order will ordinarily be relegated to that Forum rather than have the writ decided on merits. **order of 22.3.2023**

2. A consumer's objection that the CGRF is not manned by a judicial member (being run by an Executive Engineer) is answered where the licensee establishes on the personal affidavit of its Executive Engineer that the Forum is functional and chaired by a retired judicial officer (here a retired Additional District Judge); a website printout showing vacancies does not displace that sworn stand, and the vacancy of the Member (Technical) does not preclude relegation. **orders of 14.3.2023 & 22.3.2023**
3. On relegating a consumer to the CGRF, the Court may mould relief by fixing a period to file the complaint (with a certified copy of the order), directing an expeditious decision after hearing, granting liberty to seek stay before the Forum (to be decided within a fixed time), and restraining coercive action for a fixed period or until the stay application is decided, whichever is earlier. **order of 22.3.2023**

## HOLDING-UNITS

### HOLDING-UNIT · UP-2005::7.10

RATIO

Consumer relegated to the Consumer Grievance Redressal Forum under Clause 7.10 as the efficacious alternate remedy

#### QUESTION

Where a consumer challenges a distribution licensee's order (here, of the Executive Engineer) by writ, but a Consumer Grievance Redressal Forum under Clause 7.10 of the U.P. Electricity Supply Code, 2005 is available and functional, should the consumer be relegated to that Forum instead of having the writ decided on merits?

#### HOLDING

Yes. Once the respondents established that the Moradabad CGRF under Clause 7.10 was functional, the Division Bench, 'in view of the stand taken by the respondents', disposed of both writ petitions and relegated the petitioners to the Forum. The petitioners were given liberty to file a complaint within four weeks along with a certified copy of the order, to be decided by the Forum strictly in accordance with law and expeditiously after reasonable hearing; liberty to move a stay application to be decided within two weeks; and protection from coercive action pursuant to the impugned order for six weeks or until the stay application is decided, whichever is earlier. The merits of the impugned order were not examined and were left to the Forum. **order of 22.3.2023**

**EVIDENCE** “we dispose of the above writ petitions giving liberty to both the petitioners to file a complaint separately, before the Electricity Consumer Grievance Redressal Forum, Moradabad within four weeks from today along with a certified copy of this order” **order of 22.3.2023**

**EVIDENCE** “For a period of six weeks or till the order on stay application of the petitioners is passed by the Forum, whichever is earlier, no coercive action shall be taken against the petitioners pursuant to the impugned order” **order of 22.3.2023**

**FLAG** Order-sheet matter with no printed page numbers or numbered paragraphs; pins are order dates (pin\_basis=date).

### HOLDING-UNIT · UP-2005::7.10

RATIO

Objection that the CGRF lacks a judicial member is met by proof that a retired judicial officer chairs a functional Forum

#### QUESTION

Does a consumer's objection that the Clause 7.10 Consumer Grievance Redressal Forum is not manned by a judicial member, being run by an Executive Engineer, defeat relegation to that Forum?

#### HOLDING

No, not on these facts. The petitioners' objection that the Forum lacked a judicial member and was run by an Executive Engineer was answered by the Executive Engineer's personal affidavit and the department's instructed statement that the Moradabad CGRF was functional and chaired by Sri Jagdish, a retired Additional District Judge. The petitioner's website printout showing the posts of Chairman/Judicial Member and Technical Member as vacant did not displace that sworn stand, and the vacancy of the Member (Technical) did not preclude relegation. Acting on the respondents' stand, the Court treated the Forum as an available and adequate remedy and relegated the petitioners to it. **orders of 14.3.2023 & 22.3.2023**

**EVIDENCE** “Chairman of Moradabad Consumer Grievance Redressal Forum is Sri Jagdish, who is stated to be a retired Additional District Judge. It is further stated in the affidavit that Electricity Consumer Grievance Redressal Forum, Moradabad is functional at present” **order of 22.3.2023**

**EVIDENCE** “one Sri Jagdeesh (Retired Judge) is the Chairman and one Sri Yogendra Singh (Executive Engineer attached with the office of the Chief Engineer, Moradabad) is technical member of Consumer Grievance Redressal Forum, Moradabad under

## PRINCIPLE TAGS

**alternative-remedy-relegation** Consumer challenging a licensee's order by writ is relegated to the Clause 7.10 Consumer Grievance Redressal Forum once it is shown to be functional, the merits being left to the Forum. [order of 22.3.2023](#)

**consumer-grievance-redressal-forum-remedy-clause-7.10** Clause 7.10 CGRF is the statutory forum for a consumer's grievance against the licensee's order; the writ court channels the dispute there. [order of 22.3.2023](#)

**cgrf-adequacy-requires-judicial-member** Objection that the CGRF lacks a judicial member is met by proof on affidavit that the Forum is functional and chaired by a retired judicial officer; a website printout showing vacancies does not displace the sworn stand. [orders of 14.3.2023 & 22.3.2023](#)

## NOT DECIDED — NEGATIVE AUTHORITY

**NOT DECIDED — MERITS OF THE IMPUGNED ORDER DATED 7.10.2022 OF THE EXECUTIVE ENGINEER**  
Left to the Consumer Grievance Redressal Forum to decide strictly in accordance with law; the Court did not examine the correctness of the impugned order. [order of 22.3.2023](#)

**NOT DECIDED — WHETHER THE MORADABAD CGRF WAS IN FACT FULLY AND VALIDLY CONSTITUTED**  
The Court acted on the Executive Engineer's affidavit that the Forum was functional and chaired by a retired Additional District Judge, notwithstanding the petitioner's website printout showing vacancies and the admitted vacancy of the Member (Technical); it did not conclusively adjudicate the constitution beyond accepting the sworn stand for the purpose of relegation. [orders of 14.3.2023 & 22.3.2023](#)

## RELATED CASES — SEE ALSO

**SCJ-2191** — Closest spine sibling on the CGRF-remedy tag; consumer likewise relegated to the Consumer Grievance Redressal Forum under Clause 7.10 as the efficacious remedy.

**SCJ-096** — Clause 7.10 forum/Ombudsman route for consumer grievances; supports channelling the dispute to the statutory Forum.

**SCJ-305** — Alternative-remedy relegation in an electricity matter; consumer directed to the statutory remedy rather than a writ on merits.

**SCJ-1444** — Clause 7.10 CGRF route for a consumer's grievance against the licensee.